



United States
Attorney's Office
District of Maryland



South Carolina Man Charged in Maryland for Multi-Million-Dollar Medicare Fraud and Ponzi Schemes

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For Immediate Release

U.S. Attorney's Office, District of Maryland

Baltimore, Maryland – Today, the U.S. Attorney's Office for the District of Maryland unsealed two indictments. The indictments charged a South Carolina man with defrauding Medicare through a laboratory test scheme during the COVID-19 pandemic and with defrauding customers of his private charter jet company.

Kelly O. Hayes, U.S. Attorney for the District of Maryland, announced the indictment with Matthew R. Galeotti, Head of the Justice Department's Criminal Division; Special Agent in Charge William J. DelBagno, Federal Bureau of Investigation (FBI) – Baltimore Field Office; Special Agent in Charge Maureen R. Dixon, Department of Health and Human Services Office of Inspector General (HHS-OIG); and Special Agent in Charge Greg Thompson, Department of Transportation Office of Inspector General (DOT-OIG).

As alleged in the first indictment, during the COVID-19 pandemic, Patrick Britton-Harr, 41, of Charleston, South Carolina, and formerly of Annapolis, Maryland, offered COVID-19 screening tests to nursing home patients across the country. Britton-Harr then allegedly fraudulently billed Medicare, through his company Provista Health, for expensive respiratory pathogen panel (RPP) tests for these patients. The RPP tests were medically unnecessary, never ordered by a treating physician as required, and many were never actually performed, including tests for patients who were already deceased. Through Provista Health, Britton-Harr caused the submission of more than \$15 million in fraudulent claims for RPP tests to Medicare. Medicare eventually paid out more than \$5 million.

According to the second indictment, Britton-Harr owned and controlled AeroVanti, Inc. and its affiliated entities. Through AeroVanti, a private air club offering members a la carte access to private jets, Britton-Harr encouraged "Top Gun" members to pay \$150,000 upfront to secure block flight hours. In return, Britton-Harr promised to use their money to purchase specific aircraft, in which Top Gun members would have a securitized interest.

Britton-Harr recruited nearly 100 Top Gun members, who collectively paid approximately \$15 million in upfront payments, to purchase five aircraft. Instead of buying the aircraft, Britton-Harr allegedly misappropriated members' money for his own personal benefit, including paying for yachts and jewelry, his living expenses, and to rent a property near Tampa, Florida. Then Britton-Harr attempted to conceal his fraud by obtaining a \$1.5-million loan to purchase one of the aircraft he already claimed that he purchased with Top Gun funds by withholding material information from the lender to obtain the loan.

"It is unconscionable for someone to defraud the government and others for personal gain, especially as we faced a global health crisis," Hayes said. "Britton-Harr showed a total disregard for those who depend on our Medicare system for health care services and for the individuals he scammed through his private-jet company. The U.S. Attorney's Office is committed to working with our federal law-enforcement partners to bring those to justice who break the law and take advantage of others."

"The defendant allegedly perpetrated two fraud schemes, first exploiting the COVID-19 pandemic to defraud Medicare out of millions of dollars and then stealing millions more from customers of his aviation company, all for his personal benefit," Galeotti said. "These indictments demonstrate the Criminal Division's commitment to rooting out bad actors who steal from taxpayer-supported health care programs and defraud American consumers."

"Patrick Britton-Harr's repeated crimes reveal a man with no moral compass motivated by pure greed. His deceit and scheming resulted in a staggering amount of loss to American taxpayers and the public," DelBagno said. "He tried to fleece the U.S. government out of millions by taking advantage of a national crisis. After his laboratory testing business failed, Britton-Harr again turned to deception. Time and again, he chose to lie, steal, and deceive. No more. This investigation holds Britton-Harr accountable for his crimes and sends a clear message that the FBI and our partners will not allow such despicable behavior to go unchecked."

"Individuals who steal from Medicare waste taxpayer dollars and create incisions in the fabric that holds our health care system together. HHS-OIG will continue the pursuit of upholding the integrity, trust, and confidence in federal health care programs, which benefits the people they serve," Dixon said. "HHS-OIG, in collaboration with our law enforcement partners, will continuously investigate alleged attempts to defraud these programs."

"The scope of the alleged fraud is staggering and underscores the extraordinary lengths to which individuals will go to deceive and exploit others under the guise of legitimate business, including private aviation services," Thompson said. "The DOT-OIG remains steadfast in its commitment to working in coordination with our law enforcement and prosecutorial partners to pursue those who engage in egregious schemes designed solely for personal enrichment."

Britton-Harr is charged with five counts of health care fraud and one count of money laundering in the indictment related to his RPP scheme. Additionally, Britton-Harr is charged with six counts of wire fraud in the indictment connected to the AeroVanti scheme.

If convicted, he faces a maximum penalty of 20 years in prison for each wire fraud count and 10 years in prison for each health care fraud and money laundering count. A federal district court judge determines

sentencing after considering the U.S. Sentencing Guidelines and other statutory factors.

An indictment is merely an allegation. All defendants are presumed innocent until proven guilty beyond a reasonable doubt in a court of law.

U.S. Attorney Hayes commended the FBI, HHS-OIG, and DOT-OIG for their work in investigating these cases. Ms. Hayes also thanked Assistant U.S. Attorneys Ari D. Evans and Matthew P. Phelps and Trial Attorneys David Peters and Chris Wenger, Criminal Division’s Fraud Section who are prosecuting these cases.

For more information about the Maryland U.S. Attorney’s Office, its priorities, and resources available to report fraud, visit justice.gov/usao-md and justice.gov/usao-md/community-outreach.

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